धारा 173 भारतीय नागरिक सुरक्षा संहिता

कार्य नं. 1

प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत) बि.पु.स्था.सी. (1)
FIRST INFORMATION REPORT (Under Sec. 154 Cr.P.C.) S.P.E.C.-II

U/S 173 BNSS

बुक नं. Book No. **1432** क्रम सं. Serial No. **019**

1. जिला : District **Mumbai** | थाना : PS: **CBI, ACB, Mumbai** | वर्ष : Year **2025** | प्र.सू.प्र.क्र. FIR No. **RC0262025A0008** | दिनांक : Date **06/02/2025**

2. (1) विधान : Act **PC Act, 1988 (As amended in 2018)** | धाराएं : Sections **7-A**

(2) विधान : Act **The BNS, 2023** | धाराएं : Sections **61(2)**

(3) विधान : Act -- | धाराएं : Sections --

(4) अन्य विधान एवं धाराएं : Other Acts & Sections --

3. (क) (a) प्रतीत अपराध : Suspected Offence **Criminal Conspiracy, Taking undue advantage to influence public servant by corrupt or illegal means or by exercise of personal influence..**

(ख) (b) दिन : Day | दिनांक Date | समय Time

During the years 2025

(ग) (c) थाने पर सूचना प्राप्त होने का Information received at PS | दिनांक Date **27/01/2025**

कायमी अपराध : Entry No. **04** | दिनांक Date **06/02/2025** | समय Time **1900 Hrs.**

4. सूचना का प्रकार : Type of Information | लिखित/मौखिक Written/Oral **Written**

5. घटना का स्थान Place of Occurrence **Mumbai, *Maharashtra.***

(क) (a) थाने से दिशा व दूरी : Direction & Distance from PS --

बीट नं. / Beat No.

(ख) पता:
(b) Address

(ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना –
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम
Name of PS

जिला
District

6. अभियोगी / सूचनाकर्ता :
Complainant / Informant

(क) नाम
(a) Name **Shri Vinay Saraf**

(ख) पिता / पति का नाम
(b) Father's / Husband's Name

(ग) जन्म तिथि
(c) Date of Birth

(घ) राष्ट्रीयता :
(d) Nationality **Indian**

(ङ) पासपोर्ट नं. ..... जारी दिनांक ..... जारी होने का स्थान .....
(e) Passport No Date of Issue Palce of Issue

(च) व्यवसाय
(f) Profession **Private Person**

(छ) पता –
(g) Address Director, M/s Micro Capital Pvt Lt R/o Flat no 2607, 26th floor, Aradhya High Park, MICL behind Thakur Mall, Near Dahisar Check Naka, Mira Road (East), Mobile No- 7710077003.

7. ज्ञात / संदेही / अज्ञात / आरोपी का पूर्ण विवरण:
Details of known / suspected / unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

(1) 1. Ms. Mahwsh A Bhat @ Mahi Bhat, M/s AU Corporate Advisory and Legal Services, Mumbai, office no-63, 6th Floor, B Wing, Mittal Court, BRP Road, Nariman Point Mumbai
(2)
(3) 2. Shri Akshat Khetan, Prop. of M/s AU Corporate Advisory and Legal Services, Mumbai, office no-63, 6th Floor, B Wing, Mittal Court, BRP Road, Nariman Point Mumbai
3. Other unknown public servants / private persons.

8. अभियोगी / सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant / informant

No delay

9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण : (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)

Nil

10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य : N.A.
Total value of property stolen

11. मर्ग / अकाल मृत्यु सूचना क्रमांक : N.A.
Inquest Report / U. D. case No. if any

12. प्रथम सूचना विवरण :- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)
Information as per separate sheet attached.

(P. Krishnakant, IPS)
SP CBI ACB Mumbai.

INFORMATION – RC0262025A0008-CBI-ACB-MUMBAI

A written complaint dated 27.01.2025 was received from Shri Vinay Saraf, Director of M/s Micro Capital Pvt Ltd, R/o Flat no 2607, 26th floor, Aradhya High Park, MICL behind Thakur Mall, Near Dahisar check Naka, Mira Road (East) in office (copy enclosed herewith) and marked to Shri R D Meena, Police Inspector, CBI, ACB, Mumbai for verification.

The verification of the complaint was conducted on 28.01.2025, 29.01.2025, 03.02.2025 and 04.02.2025 in presence of the independent witnesses.

Verification has revealed that M/s Micro Capital Pvt Ltd. has filed petition under section 7 (CP. (IB) – 748/MB/2022) of IBC against M/s KSS Ltd before NCLT Mumbai. Corporate Insolvency Resolution Process (CIRP) proceeding was initiated against M/s KSS Ltd and Mr. Dharmendra Dhelariya was appointed as Resolution Professional (RP). After completion of CIRP proceedings, an IA (IBC) Plan-4/2024 was submitted by the Successful Resolution Applicant (i.e. Micro Capital Pvt Ltd) before NCLT Bench Mumbai -Court Room no 5, Ms. Reeta Kohli, Member (Judicial) and Ms. Madhu Sinha, Member (Technical). In this matter arguments were completed and order was reserved on 29.08.2024. However, till today no order is passed by the National Company Law Tribunal (NCLT), Mumbai.

Ms. Mahwsh @ Mahi Bhat working in AU Corporate Advisory and Legal Services having office no-63, 6th Floor, B Wing, Mittal Court, BRP Road, Nariman Point Mumbai contacted complainant and told that she is having close proximity with Ms. Reeta Kohli, Member (Judicial) NCLT Mumbai and can get favorable decision the matter in the favour of M/s Micro Capital Pvt. Ltd. in lieu of monetary consideration.

Ms. Mahi Bhat demanded bribe to the tune of Rs. 1.5 crore to influence the aforesaid members of NCLT Mumbai to expedite the process and get the judgment delivered in favour of M/s Micro Capital Pvt Ltd. After negotiations the bribe amount was reduced to Rs. 1 Crore. Ms. Mahwsh A Bhat @ Mahi Bhat has sometimes referred the demanded bribe as "Fees" in code word. However, complainant clarified that their company never hired Ms. Mahi Bhat to represent before NCLT or any other forum in the matter. Verification revealed that Ms. Mahwsh A Bhat @ Mahi Bhat conspired with Shri Akshat Khetan, Proprietor of M/s AU Corporate Advisory and Legal Services and others unknown public servant / private persons to influence the members of NCLT by corrupt or illegal means. In furtherance of the said conspiracy Ms. Mahwsh A Bhat @ Mahi Bhat and his partner Shri Akshat Khetan demanded bribe to get the judgment delivered on desired date at the earliest in favour of M/s Micro Capital Pvt. Ltd for said favour and to influence NCLT Members by corrupt or illegal means. She initially demanded Rs. 1.5 crore to influence the members of NCLT Mumbai and after negotiations the amount was reduced to Rs. 1 Crore. During the further conversation Ms. Mahwsh A Bhat @ Mahi Bhat and Shri Akshat Khetan demanded bribe from the complainant and after negotiation, agreed to accept Rs. 1 Crore to influence members of NCLT Mumbai (Smt. Reeta Kohli and Smt. Madhu Sinha) to get the judgment delivered in favour of company M/s Micro Capital Pvt Ltd from NCLT at the earliest on desired date.

Verification also revealed that Ms. Mahwsh A Bhat @ Mahi Bhat initially demanded 50% advance of bribe money for which complainant expressed his inability. Later, after negotiation, Ms Mahi Bhat and Shri Akshat Khetan reduced it to 30 % and finally agreed to accept 20 % of demanded bribe i.e. Rs. 20 Lakh as advance.

Further, Ms Mahi Bhat provided HDFC Bank account number 50200064599730, IFSC : HDFC0000001 which is in the name of AU Corporate Advisory and Legal Services. On the direction of Ms. Mahwsh A Bhat @ Mahi Bhat, the complainant deposited Rs. 20 Lakh as advance payment of bribe on 04-02-2025 in the above mentioned bank account.

Verification also revealed that Ms. Mahwsh A Bhat @ Mahi Bhat and Shri Akshat Khetan directed the complainant to pay remaining bribe amount of Rs. 80 Lakhs in cash on the day of final order after pronouncement of order in favour of the complainant. They also informed that it will be pronounced before 14.02.2025.

The Complaint and subsequent verification, prima facie disclose commission of offence punishable under Section 61(2) The BNS, 2023 and Sec. 7-A of Prevention of Corruption Act, 1988 (as amended in 2018) against Ms. Mahwsh A Bhat @ Mahi Bhat, Shri Akshat Khetan, Prop. of M/s AU Corporate Advisory and Legal Services, Mumbai & other unknown public servants/ private persons and it is entrusted to Smt. Seema Randive, Police Inspector, CBI, ACB, Mumbai for investigation.

(P. Krishnakant, IPS)
Supdt.of Police
CBI ACB Mumbai

13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (ओ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।
Action taken : Since the above information reveals commission of offernce(s) u/s as mentioned at Item no. 2

(1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा
Registered the case and took up the investigation or

A Regular Case is registered

(2) निर्देशित (जांच अधिकरी का नाम) Directed (Name of IO)	रैंक Rank	नं. No.	जांच हेतु लिया गया Took up for investigation
Smt. Seema Randive	**Inspector of Police CBI : ACB : Mumbai**		**Yes**

(3) कारण से जांच के नामंजूर
Refused investigation due to — अथवा or

(4) पुलिस थाना को स्थानांतरित किया गया
Transferred to PS — जिला District — क्षेत्राधिकार के आधार पर on point of jurisdiction

अभियोगी / सूचनाकर्त्ता को प्र.सू. पत्र पढ़ाकर / पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वाकार किया। इसकी एक प्रति अभियोगी / सूचनाकर्त्ता को निःशुल्क प्रदान की गई।
FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R. O. A. C.

06/02/2025

14. अभियोगी / सूचनाकर्त्ता के हस्ताक्षर
Signature / Thumb impression of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge, Police Station
(P. Krishnakant, IPS)
SP CBI ACB Mumbai
नाम / Name
(पद) / Rank — No.

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the ourt

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं
Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरुपता तथा अन्य विवरण :-
Physical features. deformities and other details of the suspect/accused : (If known / seen)

क्र.सं. Sl. No.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/ year of Birth	*शारीरिक गठन (Built)	*ऊंचाई से. मी. में (Height) (in Cms)	* वर्ण (Complexion)	* पहचान चिन्ह (Identification Mark/s)
1	2	3	4	5	6	7

विरुपता/विलक्षणता (Deformities peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress habit/s)
8	9	10	11	12	13

भाषा / बोली (Language / Dialect)	स्थान / Palce of				
	जले का निशान (Burn mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जख्म चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19

अभियोगी / सूचनाकर्त्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।
These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.